

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

CIVIL REVISION NO. 3701 OF 2016

Md. Latiful Islam Talukder

...Petitioner

-Versus-

Present
Justice A.K.M. Rabiul Hassan

Shahid Mollah @ Shahidul Islam and others.

...Opposite Parties

Mr. Kamal Hossain, Advocate

...for the petitioner

Mr. Mir Md. Joynal Abedin, Advocate

...for the opposite party Nos.1, 2, 4 & 5

Heard on: 30.07.2023

Judgment on: 31.07.2023

A.K.M. Rabiul Hassan, J:

This rule is directed against the judgment and order dated 01.06.2016 passed by the Joint District Judge, 1st Court, Sirajgonj in Miscellaneous Appeal No. 51 of 2011 dismissing the appeal and thereby affirming the order dated 15.06.2011 passed by the learned Senior Assistant Judge, Sadar, Sirajganj in Other Class Suit No. 72 of 2009 rejecting the application for temporary injunction.

At the time of issuance of the rule this court was pleased to pass an order directing the parties to maintain the status quo in respect of possession and position of the suit land for a period of 1(one) year from the date, which was extended from time to time.

For the purpose of this rule, the relevant facts may briefly be stated as follows:

That on 30.03.2009 the petitioner as plaintiff filed an Other Class Suit No. 72 of 2009 before the Senior Assistant Judge Court, Sadar, Sirajganj, for a declaration of title of the suit against the opposite parties as defendants. During the pendency of the suit, on 17.01.2010 the plaintiff as applicant filed an application under Order 39 rule 1 and 2 for temporary injunction. Thereafter, on 11.03.2010 defendant Nos.1, 2, 4, and 5 - opposite parties had entered their appearance in the suit and filed a written objection against the said application for temporary injunction. Thereafter, as many as fourteen dates, the plaintiff sought an adjournment for hearing of the said application for temporary injunction. Consequently, the trial court fixed the date on 15.06.2011 for framing issues and also for the hearing of the said temporary injunction application. Subsequently, on 15.02.2011, the plaintiff further sought an adjournment, which was rejected for failure to take steps for hearing the adjournment application by the plaintiff. Thereafter, the plaintiff further filed an adjournment application and did not take any steps to conduct the hearing of the said application for a temporary injunction when the trial court was called for the hearing of the same, and subsequently, the trial court was pleased to reject the said application for temporary injunction and also framed the issues of the suit. Being aggrieved, the plaintiff as appellant preferred a

Miscellaneous Appeal No. 51 of 2011 before the learned District Judge, Shirajgonj. On being transferred the said appeal was heard by Joint District Judge, 1st Court, Shirajgonj. Upon hearing of both sides, on 01.06.2016 the appellate court was pleased to dismiss the appeal and thereby affirmed the order dated 15.06.2011 passed by the trial court in Other Class Suit No.72 of 2009. Being aggrieved, the plaintiff-petitioner has preferred this revisional application before this court under section 115(1) of the Code of Civil Procedure and obtained this rule with an ad-interim order of status quo.

In support of this rule, Mr. Kamal Hossain, the learned Advocate for the petitioner submits that during the pendency of the Title Suit No. 72 of 2009, i.e. on 17.01.2010, the plaintiff-petitioner filed an application for temporary injunction alleging that the opposite parties are threatening to dispossess him from peaceful possession and position of the suit land. He further submits that the trial court without going through the merit of the application filed under Order 39 rule 1 and 2 rejected the same and against which the plaintiff-petitioner as appellant filed Miscellaneous Appeal No. 51 of 2011 but the learned appellate court without applying his judicial mind and in an arbitrary manner dismissed the appeal and affirmed the order of the trial court. He further submits that if the order of injunction restraining the defendants from disturbing the peaceful possession and position of the

plaintiff-petitioner over the suit land is not passed, the plaintiff-petitioner will suffer irreparable loss and injury.

As against this, Mr. Mir Md. Joynal Abedin, the learned Advocate for the opposite party Nos. 1, 2, 4, and 5 submits that on 17.01.2010 the plaintiff had filed the application for temporary injunction, which was after 10 (ten) months from filing the suit and immediately thereafter on 11.03.2010 the present opposite parties as defendants filed written objection to the aforesaid application for temporary injunction denying the contentions made by the plaintiff-petitioner in the application under Order 39 rule 1 and 2. He further submits that the petitioner was very much negligent in taking necessary steps for disposal of the aforesaid application and as many as fourteen dates were fixed for hearing the said application but on all those dates, the plaintiff-petitioner filed adjournment applications for hearing of the aforesaid application for temporary injunction. He further submits that the litigants or persons who are negligent in conducting the case should not get any equitable justice from any court of law. He finally submits that both the courts below did not commit any error of law in rejecting the application for temporary injunction filed by the plaintiff-petitioner and, as such, the instant rule is liable to be discharged.

I have heard the submissions of the learned Advocates of both sides and perused the revisional application along with the impugned order thoroughly.

Upon perusal of the record, it transpires that the appellate court below in not granting the temporary injunction and affirming the judgment and order passed by the trial court, categorically observed that the plaintiff-petitioner was all along negligent regarding hearing of the aforesaid application for temporary injunction. It further transpires that at the time of issuance of this rule on 31.10.2016, this court was pleased to pass an order of status quo directing the parties to maintain the status quo in respect of possession and position of the suit land and the same is still on and by this time about 7 (seven) years have elapsed. It further transpires that at the time of issuance of the rule this court was pleased to call for the records for which the trial court would not be able to commence the trial in accordance with law.

On being asked the learned Advocates failed to make any proper reply, why the records of the lower courts' were called for in this rule. The parties ought to have taken necessary steps for sending back the lower court records for proper disposal of the aforesaid suit but they did not do the same. Moreover, the instant rule has been pending for about 7 (seven) years, which arose from the refusal of an injunction order and therefore, it easily transpires to this court that after filing the suit, both the parties were very much negligent in properly conducting their aforesaid case.

However, in the above facts and circumstances, this court thinks that both parties are maintaining the order of status quo in respect of the

possession and position of the suit land for about 7 (seven) years since the order of status quo was granted on 31.10.2016 by this court and therefore, the ends of justice would be met to the parties herein if the said order of status quo granted earlier on would be continued till disposal of the aforesaid Other Class Suit No.72 of 2009.

With the aforesaid observation as made above, the Rule is disposed of.

Since the aforesaid suit has been pending for a long time and therefore, the trial court is hereby directed to dispose of the Other Class Suit No.72 of 2009 expeditiously preferably within 6 (six) months without giving any unnecessary adjournment to either party after receipt of a copy of this order along with the case records.

In the meantime, the order of status quo in respect of the possession and position of the suit land, which was granted at the time of issuance of the instant rule will be continued till disposal of the Other Class Suit No.72 of 2009.

There shall be no order as to cost.

Send down the records of the case at once to the court concerned without further delay.

(A.K.M. Rabiul Hassan, J)